

3.
Bill by residu-
ary legatee.

By a residuary legatee or any of several residuary legatees of any deceased person, seeking an account of the residue, and payment or appropriation of his share therein.

IN CHANCERY.

To the Honourable, &c.

Humbly complaining, &c., your orator, &c., that he the residuary legatee (or one of the residuary legatees) under the will dated the _____ day of _____, of _____, late of _____, who died on the _____ day of _____, and that C. D., the defendant hereinafter named, is the executor of the said _____, and that the said C. D. has not paid to the said A. B. the (or his share of the) residuary personal estate of the said testator. To the end therefore that the said A. B. may have the personal estate of the said _____ administered in this Court, and may have his costs of this suit, and for that purpose that all proper directions may be given and accounts taken.

(And for further relief: pray subpoena, &c.)

NOTE.—This form may be varied according to the circumstances of the case, where the plaintiff is not the residuary legatee, but has become entitled to or interested in the residue, in which case the character in which he claims is to be stated, as before mentioned.

Similar to
English form.

This form follows the English form of claim No. 3.

4.
For an account
of the personal
estate of an
intestate; by
one entitled
under the
statute of
distributions.

By the person or any of the persons entitled to the personal estate of any person who may have died intestate, and seeking an account of such personal estate and payment of his share thereof.

IN CHANCERY.

To the Honourable, &c.

Humbly complaining, &c., your orator, &c., that he is the next of kin (or one of the next of kin) according to the statutes for the distribution of the personal estate of intestates, of _____, late of _____, who died on the _____ day of _____, intestate, and that the said A. B. is entitled to (or to a share of) the personal estate of the said _____, deceased, and that C. D., the defendant hereinafter named, is the administrator of the personal estate of the said _____, and that the said C. D. has not accounted for or paid to the said A. B. the (or the said A. B.'s share of the) personal estate of the said intestate. To the end therefore that the said A. B. may have the personal estate of the said _____ administered in this Court, and may have his costs of this suit, and for that purpose that all proper directions may be given and accounts taken.

And for further relief; pray subpoena, &c.

NOTE.—If assignee of the described, as "trator of E. F., kin, or one of the tor de bonis non, who was the ne as such executor bonis non, or estate, &c.

The above No. 4, but t Order.

By the ex claiming admini

To the Hon

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To the Hon

Humbly c and by virtu &c., and ma indenture, c is a mortgag